

2:00 PM

LINE 4

24-CLJ-06163

LAWYERS TITLE COMPANY VS. PAUL NARCISSE, ET AL.

LAWYERS TITLE COMPANY
PAUL NARCISSE

JOSETTE D JOHNSON

HEARING TO DETERMINE HOW TO DISTRIBUTE THE DEPOSITED FUNDS

TENTATIVE RULING:

The Court holds its repeatedly noticed Hearing to Determine How to Distribute the Deposited Funds.

Background

According to the allegations in the complaint, Plaintiff believes that Defendants Paul and Rina Narcisse were the buyers and Defendants David Stariha and Bernadette Romero were the sellers in a real estate transaction concerning realty located at 5631 Cloverdale Road, Pescadero, California 94060, related to which it held \$17,500.00 (the “Funds”) in escrow. Since Plaintiff received no mutual instructions as to the disposition of the Funds, it could not determine who should receive them and brought this action, claiming no interest therein beyond its attorney’s fees and costs incurred in doing so.

The Court ordered that Plaintiff be allowed to deposit the Funds with the Court, and that they be placed in an interest-bearing account (Code Civ. Proc., § 386.1). (Order, filed on October 4, 2024.)

Plaintiff requested and the Clerk entered defaults against Defendants Narcisse on October 24, 2025. At the hearing on Plaintiff’s Motion for Order Discharging Stakeholder from Liability; and Award of Attorneys Fees and Costs, which no party attended, the Court adopted its Tentative Ruling granting the motion, and set the instant hearing as follows:

Additionally, the court sets a hearing to determine how to distribute the deposited funds for September 22, 2026 at 2:00 p.m. in Department 4. Pursuant to Civil Code section 2924j, subdivision (d), the clerk shall serve written notice of the hearing by first-class mail on all claimants identified in the trustee's declaration at the addresses specified therein. The court will consider all claims filed at least 15 days before this hearing.

(Minute Order, June 23, 2026 (the “Minute Order”).) The next day, the Court served notice of the Minute Order and an Affidavit of Service upon Plaintiff’s counsel at their email addresses of record, upon Defendants Stariha and Romero at their addresses of record, and despite their having defaulted (Code Civ. Proc., § 1014 (“Where a defendant has not appeared, service of

notice or papers need not be made upon the defendant.”)), upon Defendants Narcisse who have no addresses of record at the address upon which Plaintiff declared service of the Summons, showing each of these Defendants’ signed Acknowledgements of Receipt (Proofs of Service of Summons, filed on November 25, 2024, and January 13, 2025). (Affidavit of Service, filed on June 24, 2026.) Also on that date, the Court separately served notice of the instant hearing upon the same parties in the same manner. (Clerk’s Notice of Hearing, filed on June 24, 2026.) The Court further signed on July 31, 2026, and filed on August 5, 2026, the formal Order adopting the Tentative Ruling of the Minute Order (Order, filed on August 5, 2026), as well as an Affidavit of Service of the formal Order upon Plaintiff’s counsel and upon Defendants Stariha and Romero (Affidavit of Service, filed on August 5, 2026). The Court further directed the Clerk to pay to Plaintiff \$10,066.90 from the Funds deposited with the Court (Order, signed on September 15, 2026, and filed on September 17, 2026), and served this Order as well as a corresponding Affidavit of Service upon Plaintiff’s counsel and upon Defendants Stariha and Romero (Affidavit of Service, filed on September 17, 2026). Although the deadline set by the Court fell on September 7, 2026, no claim has been filed.

Governing Law

In pertinent parts, the governing statute provides that:

Except as otherwise provided by law, any money, excluding restitution to victims, that has been deposited with a superior court ... in a court bank account or in a court trust account in a county treasury, that remains unclaimed for three years shall become the property of the superior court if, after published notice pursuant to this section, the money is not claimed or no verified complaint is filed and served.

At any time after the expiration of the three-year period specified in subdivision (a), the executive officer of the superior court may cause a notice to be published once a week for two successive weeks in a newspaper of general circulation published in the county in which the court is located. The notice shall state the amount of money, the fund in which it is held, and that it is proposed that the money will become the property of the court on a designated date not less than 45 days nor more than 60 days after the first publication of the notice.

Before or after publication, a party of interest may file a claim with the court executive officer that shall include the claimant’s name, address, amount of claim, the grounds on which the claim is founded, and any other information that may be required by the court executive officer. The claim shall be filed before the designated date on which unclaimed money becomes the property of the court as provided under subdivision (b), and the executive officer shall accept or reject that claim.

If the superior court executive officer rejects the claim, or takes no action on the claim within 30 days after it is filed, the party that submitted the claim may file a verified complaint seeking to recover all, or a specified part, of the money in the

court in the county in which the notice is published. The copy of the complaint and summons shall be served on the court executive officer. The court executive officer shall withhold the release of the portion of unclaimed money for which a court action has been filed as provided in this section until the court renders a decision or the claim is settled. Any portion of the unclaimed money not covered by the verified complaint shall become the property of the court if no other claim or verified complaint has been filed regarding it within the time specified in this section. If the party that submitted the claim does not file a verified complaint within 30 days after the date that the court mailed notice that the claim was rejected or within 60 days after the claim was filed, the money shall become the property of the court.

(Gov. Code, § 68084.1, subds. (a)-(d).)

Result

Accordingly, pursuant to Government Code section 68084.1, after the expiration of the three-year period specified in its subdivision (a), the Court will publish the notice provided thereby. The notice will propose that the Funds will become the property of the Court on a date designated therein, and provide information as to how to file a claim therefor, as described on its website at: <https://sanmateo.courts.ca.gov/general-information/escheatment>.

The clerk of the court shall serve the order on the Accounting Division of this Court.

If the tentative ruling is uncontested, it shall become the order of the Court. The Court will prepare a written order.

2:00 PM

LINE 5

25-CIV-03590

ALICIA WOODFALL-JONES VS. MATT FABRY, ET AL.

ALICIA WOODFALL-JONES

MATT FABRY

ARIEL STRAUSS

ROBERT CARROLL MAY

DEMURRER TO RESPONDENTS' ANSWER

TENTATIVE RULING:

In this case, Petitioner Alicia Woodfall-Jones seeks a writ of mandate and declaratory relief related to permit granted for a wireless service facility in the City of San Mateo. Respondents are the City of San Mateo, by and through the City Council of the City of San Mateo; Matt Fabry; and the Sustainability & Infrastructure Commission of the City of San Mateo. Real Parties in Interest are Crown Castle Fiber LLC and Verizon Wireless.

Here, Petitioner demurs to Affirmative Defenses No. 2, 4-8, and 11-14 in Respondents' Answer. Respondents have not opposed the demurrer.

Courts have construed the failure to oppose a motion as having an abandonment of the claims. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 ["Plaintiff did not oppose the County's [motion] to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiff to have abandoned the issue."]; *Bell v. Am. Title Ins. Co.* (1991) 226 Cal.App.3d 1589, 1602 [failure to oppose a motion results in a waiver on appeal of any objection to the resulting order.]) This Court believes, especially when the issue is one of law, "that the integrity of the judicial process requires ... [the Court] to subject every motion to review before granting it." (*California Judge's Benchbook: Civil Proceedings Before Trial* § 6.22 (Thomson Reuters Mar. 2026 update).) Therefore, the Court has substantively reviewed Petitioner's demurrer.

Petitioner's demurrer is SUSTAINED as to Affirmative Defenses No. 2, 4-8, and 12-14, with leave to amend, and OVERRULED as to Affirmative Defense No. 11.

LEGAL STANDARD

A party may demur to an answer on three separate bases: (1) failure to state facts sufficient to constitute a defense; (2) uncertainty; and (3) failure to state whether a contract alleged in the answer is written or oral. (Code Civ. Proc. § 430.20.)

An Answer must contain a "statement of any new matter constituting a defense." (Code Civ. Proc., § 431.30, subd. (b)(2).) An affirmative defense is a "new matter" that is something "not put
